

SOLVED PRACTICE WORKBOOK

Concept of the Constitution - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Concept of the Constitution - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Broad Coverage

OM1. Which statement most accurately describes constitution definition?

- A. A constitution creates institutions, allocates and limits power, protects rights and identifies the political community.
- B. It concerns rights but not public power.
- C. It is only a list of government offices.
- D. It is identical to every ordinary statute.

Answer: A

Explanation: Constitutive and restraining functions operate together. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM2. Which statement most accurately describes constitutionalism?

- A. Constitutionalism means judicial supremacy.
- B. Constitutionalism requires limited, accountable and legally reviewable government, not merely possession of a constitutional document.
- C. Every written constitution guarantees constitutionalism.
- D. It excludes democratic government.

Answer: B

Explanation: Effective restraint depends on institutions, rights and remedies. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM3. Which statement most accurately describes constitutional law?

- A. Every convention is enforceable law.
- B. It is narrower than the document alone.
- C. Constitutional law includes the text plus binding interpretation, statutes, rules and doctrines governing public power.
- D. Ordinary law is constitutionally supreme.

Answer: C

Explanation: The Constitution is foundational; constitutional law is the wider field. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM4. Which statement most accurately describes classification?

- A. Written always means rigid.
- B. Federal always means presidential.
- C. Uncodified means no written sources.
- D. Written/uncodified, rigid/flexible, federal/unitary and supreme/parliamentary classify different dimensions.

Answer: D

Explanation: Do not infer one axis from another. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM5. Which statement most accurately describes constituent power?

- A. Constituent power founds the order; constituted institutions exercise powers conferred by that order.
- B. Executive convention overrides the Constitution.

- C. Parliament's ordinary majority is original constituent power.
- D. Courts possess unlimited constituent authority.

Answer: A

Explanation: Article 368 is broad but constitutionally bounded. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM6. Which statement most accurately describes rule of law?

- A. It applies only to courts.
- B. Rule of law requires authorised, non-arbitrary, equally applied and reviewable public power.
- C. It prohibits all discretion.
- D. A majority vote cures unconstitutional action.

Answer: B

Explanation: Discretion must be structured rather than eliminated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM7. Which statement most accurately describes sovereignty?

- A. Courts are politically sovereign.
- B. Popular sovereignty makes amendment procedure unnecessary.
- C. India combines popular authorship with constitutional supremacy; Parliament is not sovereign in the classic British legal sense.
- D. States possess external sovereignty.

Answer: C

Explanation: Every institution is constituted and limited. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM8. Which statement most accurately describes conventions?

- A. Courts must enforce all conventions.
- B. Every repeated practice is a convention.
- C. Conventions amend text silently.
- D. Conventions guide constitutional behaviour without automatically becoming judicially enforceable law.

Answer: D

Explanation: Political obligation and legal enforceability differ. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM9. Which statement most accurately describes constitutional morality?

- A. Constitutional morality is fidelity to constitutional forms, procedures, values and institutional roles.
- B. It permits ignoring text for desirable outcomes.
- C. It binds only citizens and not offices.
- D. It means a judge's personal morality.

Answer: A

Explanation: Claims must be anchored in text and structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM10. Which statement most accurately describes transformative constitutionalism?

- A. It makes every DPSP directly enforceable.
- B. Transformative constitutionalism uses rights, dignity and social-justice commitments to change entrenched hierarchy through lawful institutions.
- C. It abolishes separation of powers.
- D. It rejects institutional restraint.

Answer: B

Explanation: Transformation remains competence- and remedy-bounded. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM11. Which statement most accurately describes living constitution?

- A. It authorises amendment by judgment.
- B. Original meaning is legally irrelevant in every case.
- C. Living interpretation applies enduring principles to new circumstances through text, structure, precedent and reasons.
- D. Every new social claim becomes a right.

Answer: C

Explanation: Dynamism requires a disciplined interpretive bridge. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM12. Which statement most accurately describes basic structure identity?

- A. It makes Article 368 unusable.
- B. It is an express constitutional schedule.
- C. It freezes every policy.
- D. Basic structure permits amendment while preventing destruction of constitutional identity.

Answer: D

Explanation: Identity protects foundational design, not a closed policy code. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM13. Which is the safest UPSC distinction concerning constitution definition?

- A. A constitution creates institutions, allocates and limits power, protects rights and identifies the political community.
- B. It is identical to every ordinary statute.
- C. It is only a list of government offices.
- D. It concerns rights but not public power.

Answer: A

Explanation: Constitutive and restraining functions operate together. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM14. Which is the safest UPSC distinction concerning constitutionalism?

- A. Constitutionalism means judicial supremacy.
- B. Constitutionalism requires limited, accountable and legally reviewable government, not merely possession of a constitutional document.
- C. Every written constitution guarantees constitutionalism.
- D. It excludes democratic government.

Answer: B

Explanation: Effective restraint depends on institutions, rights and remedies. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM15. Which is the safest UPSC distinction concerning constitutional law?

- A. Every convention is enforceable law.
- B. It is narrower than the document alone.
- C. Constitutional law includes the text plus binding interpretation, statutes, rules and doctrines governing public power.
- D. Ordinary law is constitutionally supreme.

Answer: C

Explanation: The Constitution is foundational; constitutional law is the wider field. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM16. Which is the safest UPSC distinction concerning classification?

- A. Federal always means presidential.
- B. Written always means rigid.
- C. Uncodified means no written sources.
- D. Written/uncodified, rigid/flexible, federal/unitary and supreme/parliamentary classify different dimensions.

Answer: D

Explanation: Do not infer one axis from another. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM17. Which is the safest UPSC distinction concerning constituent power?

- A. Constituent power founds the order; constituted institutions exercise powers conferred by that order.
- B. Parliament's ordinary majority is original constituent power.
- C. Executive convention overrides the Constitution.
- D. Courts possess unlimited constituent authority.

Answer: A

Explanation: Article 368 is broad but constitutionally bounded. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM18. Which is the safest UPSC distinction concerning rule of law?

- A. It prohibits all discretion.
- B. Rule of law requires authorised, non-arbitrary, equally applied and reviewable public power.
- C. It applies only to courts.
- D. A majority vote cures unconstitutional action.

Answer: B

Explanation: Discretion must be structured rather than eliminated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM19. Which is the safest UPSC distinction concerning sovereignty?

- A. Popular sovereignty makes amendment procedure unnecessary.
- B. Courts are politically sovereign.
- C. India combines popular authorship with constitutional supremacy; Parliament is not sovereign in the classic British legal sense.
- D. States possess external sovereignty.

Answer: C

Explanation: Every institution is constituted and limited. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM20. Which is the safest UPSC distinction concerning conventions?

- A. Conventions amend text silently.
- B. Courts must enforce all conventions.
- C. Every repeated practice is a convention.
- D. Conventions guide constitutional behaviour without automatically becoming judicially enforceable law.

Answer: D

Explanation: Political obligation and legal enforceability differ. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM21. Which is the safest UPSC distinction concerning constitutional morality?

- A. Constitutional morality is fidelity to constitutional forms, procedures, values and institutional roles.
- B. It means a judge's personal morality.
- C. It binds only citizens and not offices.
- D. It permits ignoring text for desirable outcomes.

Answer: A

Explanation: Claims must be anchored in text and structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM22. Which is the safest UPSC distinction concerning transformative constitutionalism?

- A. It makes every DPSP directly enforceable.
- B. Transformative constitutionalism uses rights, dignity and social-justice commitments to change entrenched hierarchy through lawful institutions.
- C. It abolishes separation of powers.
- D. It rejects institutional restraint.

Answer: B

Explanation: Transformation remains competence- and remedy-bounded. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM23. Which is the safest UPSC distinction concerning living constitution?

- A. It authorises amendment by judgment.
- B. Original meaning is legally irrelevant in every case.
- C. Living interpretation applies enduring principles to new circumstances through text, structure, precedent and reasons.
- D. Every new social claim becomes a right.

Answer: C

Explanation: Dynamism requires a disciplined interpretive bridge. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM24. Which is the safest UPSC distinction concerning basic structure identity?

- A. It is an express constitutional schedule.
- B. It freezes every policy.
- C. It makes Article 368 unusable.
- D. Basic structure permits amendment while preventing destruction of constitutional identity.

Answer: D

Explanation: Identity protects foundational design, not a closed policy code. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM25. A candidate makes a close-option error about constitution definition. Which correction is most accurate?

- A. A constitution creates institutions, allocates and limits power, protects rights and identifies the political community.
- B. It is identical to every ordinary statute.
- C. It is only a list of government offices.
- D. It concerns rights but not public power.

Answer: A

Explanation: Constitutive and restraining functions operate together. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM26. A candidate makes a close-option error about constitutionalism. Which correction is most accurate?

- A. Constitutionalism means judicial supremacy.
- B. Constitutionalism requires limited, accountable and legally reviewable government, not merely possession of a constitutional document.
- C. It excludes democratic government.
- D. Every written constitution guarantees constitutionalism.

Answer: B

Explanation: Effective restraint depends on institutions, rights and remedies. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM27. A candidate makes a close-option error about constitutional law. Which correction is most accurate?

- A. Ordinary law is constitutionally supreme.
- B. Every convention is enforceable law.
- C. Constitutional law includes the text plus binding interpretation, statutes, rules and doctrines governing public power.
- D. It is narrower than the document alone.

Answer: C

Explanation: The Constitution is foundational; constitutional law is the wider field. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM28. A candidate makes a close-option error about classification. Which correction is most accurate?

- A. Written always means rigid.
- B. Federal always means presidential.
- C. Uncodified means no written sources.
- D. Written/uncodified, rigid/flexible, federal/unitary and supreme/parliamentary classify different dimensions.

Answer: D

Explanation: Do not infer one axis from another. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM29. A candidate makes a close-option error about constituent power. Which correction is most accurate?

- A. Constituent power founds the order; constituted institutions exercise powers conferred by that order.
- B. Executive convention overrides the Constitution.
- C. Courts possess unlimited constituent authority.
- D. Parliament's ordinary majority is original constituent power.

Answer: A

Explanation: Article 368 is broad but constitutionally bounded. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM30. A candidate makes a close-option error about rule of law. Which correction is most accurate?

- A. It applies only to courts.
- B. Rule of law requires authorised, non-arbitrary, equally applied and reviewable public power.
- C. It prohibits all discretion.
- D. A majority vote cures unconstitutional action.

Answer: B

Explanation: Discretion must be structured rather than eliminated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM31. A candidate makes a close-option error about sovereignty. Which correction is most accurate?

- A. Courts are politically sovereign.
- B. Popular sovereignty makes amendment procedure unnecessary.
- C. India combines popular authorship with constitutional supremacy; Parliament is not sovereign in the classic British legal sense.
- D. States possess external sovereignty.

Answer: C

Explanation: Every institution is constituted and limited. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM32. A candidate makes a close-option error about conventions. Which correction is most accurate?

- A. Conventions amend text silently.
- B. Every repeated practice is a convention.
- C. Courts must enforce all conventions.
- D. Conventions guide constitutional behaviour without automatically becoming judicially enforceable law.

Answer: D

Explanation: Political obligation and legal enforceability differ. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM33. A candidate makes a close-option error about constitutional morality. Which correction is most accurate?

- A. Constitutional morality is fidelity to constitutional forms, procedures, values and institutional roles.
- B. It permits ignoring text for desirable outcomes.
- C. It means a judge's personal morality.
- D. It binds only citizens and not offices.

Answer: A

Explanation: Claims must be anchored in text and structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM34. A candidate makes a close-option error about transformative constitutionalism. Which correction is most accurate?

- A. It rejects institutional restraint.
- B. Transformative constitutionalism uses rights, dignity and social-justice commitments to change entrenched hierarchy through lawful institutions.
- C. It makes every DPSP directly enforceable.
- D. It abolishes separation of powers.

Answer: B

Explanation: Transformation remains competence- and remedy-bounded. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM35. A candidate makes a close-option error about living constitution. Which correction is most accurate?

- A. Every new social claim becomes a right.
- B. Original meaning is legally irrelevant in every case.
- C. Living interpretation applies enduring principles to new circumstances through text, structure, precedent and reasons.
- D. It authorises amendment by judgment.

Answer: C

Explanation: Dynamism requires a disciplined interpretive bridge. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM36. A candidate makes a close-option error about basic structure identity. Which correction is most accurate?

- A. It is an express constitutional schedule.
- B. It freezes every policy.
- C. It makes Article 368 unusable.
- D. Basic structure permits amendment while preventing destruction of constitutional identity.

Answer: D

Explanation: Identity protects foundational design, not a closed policy code. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

Remedial MCQs 1-12 - Common Error Repair

RM1. Which statement best repairs a recurring error about constitution definition?

- A. A constitution creates institutions, allocates and limits power, protects rights and identifies the political community.
- B. It concerns rights but not public power.
- C. It is identical to every ordinary statute.
- D. It is only a list of government offices.

Answer: A

Remedial explanation: Constitutive and restraining functions operate together. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM2. Which statement best repairs a recurring error about constitutionalism?

- A. It excludes democratic government.
- B. Constitutionalism requires limited, accountable and legally reviewable government, not merely possession of a constitutional document.
- C. Every written constitution guarantees constitutionalism.
- D. Constitutionalism means judicial supremacy.

Answer: B

Remedial explanation: Effective restraint depends on institutions, rights and remedies. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM3. Which statement best repairs a recurring error about constitutional law?

- A. Ordinary law is constitutionally supreme.
- B. It is narrower than the document alone.
- C. Constitutional law includes the text plus binding interpretation, statutes, rules and doctrines governing public power.
- D. Every convention is enforceable law.

Answer: C

Remedial explanation: The Constitution is foundational; constitutional law is the wider field. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM4. Which statement best repairs a recurring error about classification?

- A. Uncodified means no written sources.
- B. Written always means rigid.
- C. Federal always means presidential.
- D. Written/uncodified, rigid/flexible, federal/unitary and supreme/parliamentary classify different dimensions.

Answer: D

Remedial explanation: Do not infer one axis from another. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM5. Which statement best repairs a recurring error about constituent power?

- A. Constituent power founds the order; constituted institutions exercise powers conferred by that order.
- B. Parliament's ordinary majority is original constituent power.
- C. Courts possess unlimited constituent authority.
- D. Executive convention overrides the Constitution.

Answer: A

Remedial explanation: Article 368 is broad but constitutionally bounded. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM6. Which statement best repairs a recurring error about rule of law?

- A. A majority vote cures unconstitutional action.
- B. Rule of law requires authorised, non-arbitrary, equally applied and reviewable public power.
- C. It applies only to courts.
- D. It prohibits all discretion.

Answer: B

Remedial explanation: Discretion must be structured rather than eliminated. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM7. Which statement best repairs a recurring error about sovereignty?

- A. Popular sovereignty makes amendment procedure unnecessary.
- B. States possess external sovereignty.
- C. India combines popular authorship with constitutional supremacy; Parliament is not sovereign in the classic British legal sense.
- D. Courts are politically sovereign.

Answer: C

Remedial explanation: Every institution is constituted and limited. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM8. Which statement best repairs a recurring error about conventions?

- A. Conventions amend text silently.
- B. Courts must enforce all conventions.
- C. Every repeated practice is a convention.
- D. Conventions guide constitutional behaviour without automatically becoming judicially enforceable law.

Answer: D

Remedial explanation: Political obligation and legal enforceability differ. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM9. Which statement best repairs a recurring error about constitutional morality?

- A. Constitutional morality is fidelity to constitutional forms, procedures, values and institutional roles.
- B. It permits ignoring text for desirable outcomes.
- C. It binds only citizens and not offices.
- D. It means a judge's personal morality.

Answer: A

Remedial explanation: Claims must be anchored in text and structure. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM10. Which statement best repairs a recurring error about transformative constitutionalism?

- A. It abolishes separation of powers.
- B. Transformative constitutionalism uses rights, dignity and social-justice commitments to change entrenched hierarchy through lawful institutions.
- C. It makes every DPSP directly enforceable.
- D. It rejects institutional restraint.

Answer: B

Remedial explanation: Transformation remains competence- and remedy-bounded. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM11. Which statement best repairs a recurring error about living constitution?

- A. It authorises amendment by judgment.
- B. Every new social claim becomes a right.
- C. Living interpretation applies enduring principles to new circumstances through text, structure, precedent and reasons.
- D. Original meaning is legally irrelevant in every case.

Answer: C

Remedial explanation: Dynamism requires a disciplined interpretive bridge. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM12. Which statement best repairs a recurring error about basic structure identity?

- A. It is an express constitutional schedule.
- B. It makes Article 368 unusable.
- C. It freezes every policy.
- D. Basic structure permits amendment while preventing destruction of constitutional identity.

Answer: D

Remedial explanation: Identity protects foundational design, not a closed policy code. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

PYQS AND ANSWER PRACTICE

Verified and Supporting PYQs with Model Solutions

Supporting routed PYQ 1 - 2021 GS-II Q1

Question: Constitutional Morality is rooted in the Constitution itself and is founded on its essential facets. Explain with relevant judicial decisions.

Directive: Explain · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Constitutional Morality is rooted in the Constitution itself and is founded on its essential facets. The answer must respond to the directive **Explain** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Define constitutional morality as fidelity to forms, procedures, values and institutional roles.
- **Claim -> evidence -> analysis -> qualification:** Anchor it in the Preamble, rights, responsibility, federalism and judicial review.
- **Claim -> evidence -> analysis -> qualification:** Use S.R. Bommai (1994) and Navtej Singh Johar (2018) as bounded illustrations.
- **Claim -> evidence -> analysis -> qualification:** It protects minorities and institutional good faith against raw majoritarianism.

- **Claim -> evidence -> analysis -> qualification:** It must remain tied to text and structure rather than personal morality.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Supporting routed PYQ 2 - 2023 GS-II Q11

Question: The Constitution of India is a living instrument with capabilities of enormous dynamism and is made for a progressive society. Illustrate with the expanding horizons of life and personal liberty.

Directive: Illustrate · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: The Constitution of India is a living instrument with capabilities of enormous dynamism and is made for a progressive society. The answer must respond to the directive **Illustrate** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** A living constitution applies enduring textual principles to new conditions.
- **Claim -> evidence -> analysis -> qualification:** Maneka Gandhi (1978) transformed procedure into a fair, just and reasonable guarantee.
- **Claim -> evidence -> analysis -> qualification:** K.S. Puttaswamy (2017) applied dignity and liberty to informational privacy.
- **Claim -> evidence -> analysis -> qualification:** Dynamic interpretation remains bounded by text, structure, precedent and institutional competence.
- **Claim -> evidence -> analysis -> qualification:** Amendment and democratic lawmaking complement rather than disappear before interpretation.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Supporting routed PYQ 3 - 2025 GS-II Q11

Question: Explain constitutional morality and its application in balancing judicial independence with judicial accountability in India.

Directive: Explain · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: Explain constitutional morality and its application in balancing judicial independence with judicial accountability in India. The answer must respond to the directive **Explain** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Constitutional morality protects decisional independence and rejects executive intimidation.
- **Claim -> evidence -> analysis -> qualification:** It also requires transparent institutional procedure, reasons and ethical responsibility.
- **Claim -> evidence -> analysis -> qualification:** Appointments, recusal, disclosure and removal rules operationalise the balance.
- **Claim -> evidence -> analysis -> qualification:** Accountability must not become control of judgments; independence must not become insulation from standards.
- **Claim -> evidence -> analysis -> qualification:** The doctrine is a role-based constitutional discipline for judges and other high functionaries.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Original Solved Mains Practice

M1. Distinguish a constitution from constitutionalism.

Directive: Distinguish · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Distinguish a constitution from constitutionalism. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Constitutionalism - claim -> evidence -> analysis -> qualification:** Constitutionalism requires limited, accountable and legally reviewable government, not merely possession of a constitutional document. Effective restraint depends on institutions, rights and remedies.
- **Constitutional Law - claim -> evidence -> analysis -> qualification:** Constitutional law includes the text plus binding interpretation, statutes, rules and doctrines governing public power. The Constitution is foundational; constitutional law is the wider field.
- **Classification - claim -> evidence -> analysis -> qualification:** Written/uncodified, rigid/flexible, federal/unitary and supreme/parliamentary classify different dimensions. Do not infer one axis from another.
- **Constituent Power - claim -> evidence -> analysis -> qualification:** Constituent power founds the order; constituted institutions exercise powers conferred by that order. Article 368 is broad but constitutionally bounded.
- **Rule Of Law - claim -> evidence -> analysis -> qualification:** Rule of law requires authorised, non-arbitrary, equally applied and reviewable public power. Discretion must be structured rather than eliminated.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M2. Explain the constitutive and restraining functions of a constitution.

Directive: Explain · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Explain the constitutive and restraining functions of a constitution. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Constitutional Law - claim -> evidence -> analysis -> qualification:** Constitutional law includes the text plus binding interpretation, statutes, rules and doctrines governing public power. The Constitution is foundational; constitutional law is the wider field.
- **Classification - claim -> evidence -> analysis -> qualification:** Written/uncodified, rigid/flexible, federal/unitary and supreme/parliamentary classify different dimensions. Do not infer one axis from another.
- **Constituent Power - claim -> evidence -> analysis -> qualification:** Constituent power founds the order; constituted institutions exercise powers conferred by that order. Article 368 is broad but constitutionally bounded.
- **Rule Of Law - claim -> evidence -> analysis -> qualification:** Rule of law requires authorised, non-arbitrary, equally applied and reviewable public power. Discretion must be structured rather than eliminated.
- **Sovereignty - claim -> evidence -> analysis -> qualification:** India combines popular authorship with constitutional supremacy; Parliament is not sovereign in the classic British legal sense. Every institution is constituted and limited.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M3. Examine constituent power and the limits of constituted institutions in India.

Directive: Examine · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Examine constituent power and the limits of constituted institutions in India. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Classification - claim -> evidence -> analysis -> qualification:** Written/uncodified, rigid/flexible, federal/unitary and supreme/parliamentary classify different dimensions. Do not infer one axis from another.
- **Constituent Power - claim -> evidence -> analysis -> qualification:** Constituent power founds the order; constituted institutions exercise powers conferred by that order. Article 368 is broad but constitutionally bounded.
- **Rule Of Law - claim -> evidence -> analysis -> qualification:** Rule of law requires authorised, non-arbitrary, equally applied and reviewable public power. Discretion must be structured rather than eliminated.
- **Sovereignty - claim -> evidence -> analysis -> qualification:** India combines popular authorship with constitutional supremacy; Parliament is not sovereign in the classic British legal sense. Every institution is constituted and limited.
- **Conventions - claim -> evidence -> analysis -> qualification:** Conventions guide constitutional behaviour without automatically becoming judicially enforceable law. Political obligation and legal enforceability differ.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M4. Analyse popular, parliamentary and constitutional sovereignty in the Indian order.

Directive: Analyse · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Analyse popular, parliamentary and constitutional sovereignty in the Indian order. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Constituent Power - claim -> evidence -> analysis -> qualification:** Constituent power founds the order; constituted institutions exercise powers conferred by that order. Article 368 is broad but constitutionally bounded.
- **Rule Of Law - claim -> evidence -> analysis -> qualification:** Rule of law requires authorised, non-arbitrary, equally applied and reviewable public power. Discretion must be structured rather than eliminated.
- **Sovereignty - claim -> evidence -> analysis -> qualification:** India combines popular authorship with constitutional supremacy; Parliament is not sovereign in the classic British legal sense. Every institution is constituted and limited.
- **Conventions - claim -> evidence -> analysis -> qualification:** Conventions guide constitutional behaviour without automatically becoming judicially enforceable law. Political obligation and legal enforceability differ.
- **Constitutional Morality - claim -> evidence -> analysis -> qualification:** Constitutional morality is fidelity to constitutional forms, procedures, values and institutional roles. Claims must be anchored in text and structure.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M5. Discuss constitutional morality and transformative constitutionalism with appropriate limits.

Directive: Discuss · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Discuss constitutional morality and transformative constitutionalism with appropriate limits. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Rule Of Law - claim -> evidence -> analysis -> qualification:** Rule of law requires authorised, non-arbitrary, equally applied and reviewable public power. Discretion must be structured rather than eliminated.
- **Sovereignty - claim -> evidence -> analysis -> qualification:** India combines popular authorship with constitutional supremacy; Parliament is not sovereign in the classic British legal sense. Every institution is constituted and limited.
- **Conventions - claim -> evidence -> analysis -> qualification:** Conventions guide constitutional behaviour without automatically becoming judicially enforceable law. Political obligation and legal enforceability differ.
- **Constitutional Morality - claim -> evidence -> analysis -> qualification:** Constitutional morality is fidelity to constitutional forms, procedures, values and institutional roles. Claims must be anchored in text and structure.
- **Transformative Constitutionalism - claim -> evidence -> analysis -> qualification:** Transformative constitutionalism uses rights, dignity and social-justice commitments to change entrenched hierarchy through lawful institutions. Transformation remains competence- and remedy-bounded.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M6. Critically evaluate living-constitution and original-meaning approaches in Indian interpretation.

Directive: Critically evaluate · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Critically evaluate living-constitution and original-meaning approaches in Indian interpretation. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Sovereignty - claim -> evidence -> analysis -> qualification:** India combines popular authorship with constitutional supremacy; Parliament is not sovereign in the classic British legal sense. Every institution is constituted and limited.
- **Conventions - claim -> evidence -> analysis -> qualification:** Conventions guide constitutional behaviour without automatically becoming judicially enforceable law. Political obligation and legal enforceability differ.
- **Constitutional Morality - claim -> evidence -> analysis -> qualification:** Constitutional morality is fidelity to constitutional forms, procedures, values and institutional roles. Claims must be anchored in text and structure.
- **Transformative Constitutionalism - claim -> evidence -> analysis -> qualification:** Transformative constitutionalism uses rights, dignity and social-justice commitments to change entrenched hierarchy through lawful institutions. Transformation remains competence- and remedy-bounded.
- **Living Constitution - claim -> evidence -> analysis -> qualification:** Living interpretation applies enduring principles to new circumstances through text, structure, precedent and reasons. Dynamism requires a disciplined interpretive bridge.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M7. Assess how conventions connect India's legal and political constitution.

Directive: Assess · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Assess how conventions connect India's legal and political constitution. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Conventions - claim -> evidence -> analysis -> qualification:** Conventions guide constitutional behaviour without automatically becoming judicially enforceable law. Political obligation and legal enforceability differ.

- **Constitutional Morality - claim -> evidence -> analysis -> qualification:** Constitutional morality is fidelity to constitutional forms, procedures, values and institutional roles. Claims must be anchored in text and structure.
- **Transformative Constitutionalism - claim -> evidence -> analysis -> qualification:** Transformative constitutionalism uses rights, dignity and social-justice commitments to change entrenched hierarchy through lawful institutions. Transformation remains competence- and remedy-bounded.
- **Living Constitution - claim -> evidence -> analysis -> qualification:** Living interpretation applies enduring principles to new circumstances through text, structure, precedent and reasons. Dynamism requires a disciplined interpretive bridge.
- **Basic Structure Identity - claim -> evidence -> analysis -> qualification:** Basic structure permits amendment while preventing destruction of constitutional identity. Identity protects foundational design, not a closed policy code.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M8. Explain Indian constitutional identity through the Preamble, basic structure, social revolution and institutional restraint.

Directive: Explain · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Explain Indian constitutional identity through the Preamble, basic structure, social revolution and institutional restraint. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Constitutional Morality - claim -> evidence -> analysis -> qualification:** Constitutional morality is fidelity to constitutional forms, procedures, values and institutional roles. Claims must be anchored in text and structure.
- **Transformative Constitutionalism - claim -> evidence -> analysis -> qualification:** Transformative constitutionalism uses rights, dignity and social-justice commitments to change entrenched hierarchy through lawful institutions. Transformation remains competence- and remedy-bounded.
- **Living Constitution - claim -> evidence -> analysis -> qualification:** Living interpretation applies enduring principles to new circumstances through text, structure, precedent and reasons. Dynamism requires a disciplined interpretive bridge.
- **Basic Structure Identity - claim -> evidence -> analysis -> qualification:** Basic structure permits amendment while preventing destruction of constitutional identity. Identity protects foundational design, not a closed policy code.
- **Constitution Definition - claim -> evidence -> analysis -> qualification:** A constitution creates institutions, allocates and limits power, protects rights and identifies the political community. Constitutive and restraining functions operate together.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.